BY ORDER OF THE
SECRETARY OF THE AIR FORCE

DODI5535.12_DAFI35-114

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Public Affairs

AIR FORCE BRANDING AND TRADEMARK LICENSING PROGRAM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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(Col Mark Sotallaro)

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This publication implements Department of the Air Force Policy1 Directive (DAFPD) 35-1, *Public Affairs Management;* Title 10 United States Code Section 2260, *Licensing of intellectual property: retention of fees;* Title 15 United States Code Sections 1051 through 1127, *Trade-Marks;* and Department of Defense Directive (DoDD) 5535.09, Department of Defense (*DoD) Branding and Trademark Licensing Program*. This instruction applies to all civilians and uniformed members of the United States Space Force, Regular Air Force, Air Force Reserve, and Air National Guard. This instruction also applies to contractors when stated in the contract, except where noted otherwise. The Department of Defense Instruction is printed word-for-word in regular font without editorial review. Air Force supplementary material is printed in bold font and indicated by "(Added) (AF)." This publication provides guidance related to Department of the Air Force brand management, as directed by Headquarters Air Force (HAF) Mission Directive (MD) 1-28, *Director of Public Affairs.* It includes guidance on the use of the various United States Air Force and United States Space Force trademarks and indicia. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and disposed of in accordance with the Air Force Records Disposition Schedule located in the Air Force Records Information Management System. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*, and route AF Form 847s from the field through the appropriate functional chain of command. This publication may be supplemented at any level, but all supplements must be routed to the OPR of this publication for coordination prior to certification and approval. The authorities to waive

wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of the Air Force Instruction (DAFI) 33-360, *Publications and Forms Management*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items.

SUMMARY OF CHANGES

This document has been substantially revised and needs to be completely reviewed. Major changes include merging AFI35-114, *Branding and Trademark Licensing Program*, into DoDI 5535.12, *DoD Branding and Trademark Licensing Program Implementation*, updating the name of the program to "Air & Space Forces Branding and Trademark Licensing Program" throughout the publication, and incorporating guidance for the proper use and display of U.S. Space Force trademarks and indicia.

Department of Defense

INSTRUCTION

NUMBER 5535.12
September 13, 2013
Incorporating Change 1, April 29, 2020

ATSD (PA)

SUBJECT: DoD Branding and Trademark Licensing Program Implementation

References: See Enclosure 1

1. PURPOSE. This instruction implements the DoD Branding and Trademark Licensing Program pursuant to DoD Directive (DoDD) 5535.09 (Reference (a)), section 2260 of Title 10, United States Code (U.S.C.) (Reference (b)), and sections 1051 through 1127 of Title 15, U.S.C. (Reference (c)), in accordance with the authority in DoDD 5122.05 (Reference (d)), to provide oversight, assign responsibilities, and prescribe procedures of the program.

(Added) (AF) This supplement provides guidance for the Air & Space Forces Branding and Trademark Licensing Program, a branch in the Air & Space Forces Intellectual Property Management Office, as well as to those who use marks, logos, names, terms, designs, and symbols unique to the Air & Space Forces. These various marks and indicia of the Air & Space Forces Brands distinguish the Air Force and Space Force from other components within the DoD.

2. APPLICABILITY. This instruction applies to OSD, the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the Department of Defense, the Defense Agencies, the DoD Field Activities, and all other organizational entities within the DoD (referred to collectively in this instruction as the "DoD Components").

3. POLICY. It is DoD policy in accordance with Reference (a) to establish and maintain a program to license marks owned or controlled by DoD Components, to protect such marks from unauthorized use, and, at the discretion of the OSD and DoD Components concerned, to register such marks with the United States Patent and Trademark Office (USPTO) when doing so is in the best interest of the DoD.

4. RESPONSIBILITIES

a. Assistant to the Secretary of Defense for Public Affairs (ATSD (PA)). The

ATSD(PA):

(1) Issues guidance to the OSD and DoD Components regarding the licensing of marks and the operation of a trademark licensing program as is necessary to carry out the policies and objectives set forth in Reference (a) and this instruction in accordance with Reference (b).

(2) Establishes policies and procedures to govern, register, protect, and license OSD Component marks.

(3) Designates a Manager, DOD Branding and Trademark Program, from within the Community and Public Outreach Directorate to provide general oversight of the DOD Branding and Trademark Licensing Program in accordance with paragraph 1 of Enclosure 2.

b. OSD and DOD Components Heads. The OSD and DoD Components heads, at their discretion, establish trademark licensing programs within their Components, and issue additional guidance as needed to operate such programs in accordance with References (a), (b), (c), and this instruction, and shall designate a program manager to oversee each trademark licensing program operating within their Component and to serve on the DoD Trademark Licensing Program Working Group.

c. General Counsel of the Department of Defense (GC DoD). In addition to paragraph 5b of this enclosure, the GC DoD, provides guidance and counsel to the Manager, DoD Branding and Trademark Licensing Program, and designates a representative to serve on the OSD Component Trademark Council in accordance with paragraphs 3c and 3d of Enclosure 2.

d. Under Secretary of Defense (Comptroller) (USD(C)/Chief Financial Officer (CFO), Department of Defense; Secretary of the Army; and Director, Washington Headquarters Services (WHS). In addition to paragraph 5b of this enclosure, the USD(C)/CFO; the Secretary of the Army; and the Director, designate a representative to serve on the OSD Component Trademark Council in accordance with paragraphs 3c and 3d of Enclosure 2.

e. Director, Defense Finance and Accounting Service (DFAS). The Director, DFAS, establishes procedures for the management of trademark licensing funds in accordance with References (a) and (b), DoD 7000.14-R (Reference (e)), and this instruction.

f. **(Added) (AF) Director of Public Affairs, Office of the Secretary of the Air Force (SAF/PA). SAF/PA is the Department of the Air Force's OPR for the Air & Space Forces Branding and Trademark Licensing Program in accordance with HAF MD 1-28. SAF/PA retains all policy-making authority. SAF/PA has delegated operational responsibility to the Air Force Public Affairs Agency (AFPAA).**

g. **(Added) (AF) Commander, Air Force Public Affairs Agency (AFPAA). The Commander of AFPAA Headquarters is assigned operational responsibility for the Air & Space Forces Branding and Trademark Licensing Program. The Commander shall designate a Program Manager/Director to execute and manage the program. (T-1)**

h. **(Added) (AF) Manager/Director, Air & Space Forces Branding and Trademark Licensing. Manages and executes the Air & Space Forces Branding and Trademark Licensing Program for the Air & Space Forces' Total Force. Refer to Enclosure 2, paragraph 4, for a list of Manager/Director, Air and Space Forces Branding and Trademark Licensing Program responsibilities.**

i. **(Added) (AF) Superintendent, United States Air Force Academy (USAFA). Oversees the establishment and administration of the USAFA Brand in accordance with Enclosure 2, and coordinates with the Air & Space Forces Branding and Trademark Licensing Program any USAFA activities that may have an impact on any Air or Space Forces Brand. All USAFA licensing programs are subject to compliance inspections by the Air & Space Forces Intellectual Property Management Office, where the Air & Space Forces Branding and Trademark Licensing Program resides.**

j. **(Added) (AF) Commander, Air Force Services Activity (AFSVA). Oversees the establishment and administration of any nonappropriated funds instrumentality (NAFI) brands in accordance with Enclosure 2. Coordinates with the Air & Space Forces Branding and Trademark Licensing Program any AFSVA activities involving NAFI marks that might have an impact on any Air or Space Forces Brand, and ensures AFSVA is in receipt of any expiring funds generated from the Air & Space Forces licensing program. (T-1) Any NAFI mark that incorporates the Air Force Symbol, the Air Force Emblem, Space Force marks, or the Army Air Corps symbol (Hap Arnold wings) shall be assigned to the Air & Space Forces Branding and Trademark Licensing Program for management and inclusion in the Air & Space Forces trademark portfolio. (T-1) All AFSVA licensing programs are subject to compliance inspections by the Air & Space Forces Intellectual Property Management Office.**

k. **(Added) (AF) Assistant Secretary of the Air Force, Financial Management and Comptroller (SAF/FM). Responsible for the receipts and expenditure account and budget policy in accordance with DoD 7000.14-R, Vol. 12, Chapter 31. (T-0)**

l. **(Added) (AF) Air Force General Counsel, Office of the General Counsel (SAF/GC). In conjunction with AF/JA, advises on and coordinates on legal aspects of Air & Space Forces trademarks, and the Air & Space Forces Branding and Trademark Licensing Program.**

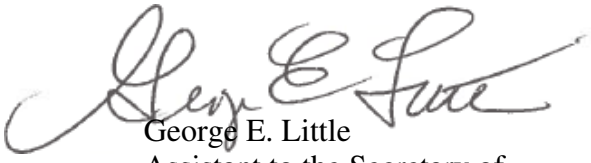
m. (Added) (AF) The Judge Advocate General (TJAG), Office of the Judge Advocate General (AF/JA). In conjunction with SAF/GC, advises on and coordinates on legal aspects of Air & Space Forces trademarks, and the legal aspects of the Air & Space Forces Branding and Trademark Licensing Program. AF/JA manages litigation matters pertaining to trademarks and settlement of trademark litigation on behalf of the Air & Space Forces. Servicing legal offices at every level advise and assist local Public Affairs Offices, as well as other Air or Space Force personnel, on all trademark activities of a local concern and coordinates with AF/JA regularly. Local judge advocates assist in the management of base-level trademarks and may, with proper credentials, file and obtain trademark registrations for specific activities, so long as approved by the Air & Space Forces Intellectual Property Management Office prior to filing. Additional responsibilities of these and other Air Force legal offices are established in AFI 51-303, *Intellectual Property--Patents, Patent Related Matters, Trademarks and Copyrights*.

5. PROCEDURES. See Enclosure 2.

6. RELEASABILITY. **Cleared for public release.** This instruction is available on the Directives Division Website at https://www.esd.whs.mil/DD/.

7. SUMMARY OF CHANGE 1. The change to this issuance updates references and removes expiration language in accordance with current Chief Management Officer of the Department of Defense direction.

8. EFFECTIVE DATE. This instruction is effective September 13, 2013.



George E. Little
Assistant to the Secretary of
Defense for Public Affairs

BEGIN SIGNATURE
Patrick S. Ryder, Brigadier General, USAF
Director of Public Affairs
END SIGNATURE

Enclosures
1. References
2. Procedures
3. **(Added) (AF) Air & Space Forces Brands**
4. **(Added) (AF) Display Guide**

Glossary

ENCLOSURE 1

REFERENCES

(a) DoD Directive 5535.09, "DoD Branding and Trademark Licensing Program," December 19, 2007
(b) Sections 112 and 2260 of Title 10, United States Code
(c) Sections 1051 through 1127 of Title 15, United States Code
(d) DoD Directive 5122.05, "Assistant To The Secretary of Defense for Public Affairs (ATSD(PA))," August 7, 2017
(e) DoD 7000.14-R, "Department of Defense Financial Management Regulations (FMRs)," Volumes 1-15, date varies per volume
(f) Defense Finance and Accounting Service Instruction 5535.1-I, "Management of DoD Branding and Trademark Licensing Revenues," March 9, 2012
(g) DoD Instruction 5105.18, "DoD Intergovernmental and Intragovernmental Committee Management Program," July 10, 2009, as amended
(h) Part 2635 of Title 5, Code of Federal Regulations
(i) Sections 506 and 1017 of Title 18, United States Code
(j) DoD Directive 5410.18, "Public Affairs Community Relations Policy," November 20, 2001
(k) DoD Instruction 1015.15, "Establishment, Management, and Control of Nonappropriated Fund Instrumentalities and Financial Management Supporting Resources," October 31, 2007, as amended
(l) DoD Instruction 8170.01, "Online Information Management and Electronic Messaging," January 2, 2019
(m) DoD Manual 4160.21, "Defense Materiel Disposition," October 22, 2015, as amended
(n) DoD Directive 5110.04, "Washington Headquarters Services (WHS)," March 27, 2013
(o) DoD Instruction 1015.10, "Military Morale, Welfare, and Recreation (MWR) Programs," July 6, 2009, as amended
(p) (Added) (AF) AFI 51-303, "Intellectual Property—Patents, Patent Related Matters, Trademarks and Copyrights," June 22, 2018
(q) (Added) (AF) AFMAN 33-326, "Preparing Official Communications," July 31, 2019
(r) (Added) (AF) DAFPD 35-1, "Public Affairs Management," December 23, 2020
(s) (Added) (AF) HAF MD 1-28, "Director of Public Affairs," December 10, 2015
(t) (Added) (AF) AFI 33-322, "Records Management and Information Governance Program," March 23, 2020
(u) (Added) (AF) DAFI 33-360, "Publications and Forms Management," December 1, 2015
(v) (Added) (AF) HAF MD 1-14, "General Counsel and the Judge Advocate

General," December 29, 2016

(w) (Added) (AF) DOD 7000.14-R, Vol. 12, Chapter 31, "Financial Management Regulations," November, 2019

(Added) (AF) Adopted Forms

(a) (Added) (AF) AF Form 847, "Recommendation for Change of Publication"

ENCLOSURE 2

PROCEDURES

1. MANAGER OF THE DOD BRANDING AND TRADEMARK LICENSING PROGRAM. The Manager, DoD Branding and Trademark Licensing Program, provides general oversight of the DoD Branding and Trademark Licensing Program and will:

   a. Issue additional program guidance as needed in accordance with References (a), (b), (c), and this instruction.

   b. As needed, review accounting reports maintained by OSD and DoD Components pursuant to Volume 12, chapter 31 of Reference (e) and DFAS Instruction 5535.1-I (Reference (f)).

   c. In accordance with DoDI 5105.18 (Reference (g)), establish and chair a DoD Trademark Licensing Program Working Group composed of full-time or permanent part-time federal employees; the Working Group shall operate as outlined in paragraph 2b of this enclosure.

   d. In accordance with Reference (g), establish and chair an OSD Component Trademark Council comprised of full-time or permanent part-time federal employees; the Council shall operate as outlined in paragraphs 3c and 3d of this enclosure.

   e. Assist the OSD and DoD Components as appropriate when requested to advise on matters related to the operation of a trademark licensing program in accordance with Reference (a) and this instruction.

   f. In coordination with the DoD Office of the General Counsel (OGC) and the OSD Component concerned, provide guidance on actions that may be taken to protect OSD Component marks when an unauthorized use of the marks is discovered.

   g. In coordination with DoD OGC and the OSD Component(s) and/or DoD Component(s) concerned, facilitate action as appropriate to protect DoD marks when an unauthorized use of the protected marks of more than one DoD Component, or a combination of the marks of an OSD Component and the marks of a DoD Component, is discovered.

   h. In coordination with the OSD Components, maintain a complete roster of OSD Component marks.

2. TRADEMARK LICENSING PROGRAM REQUIREMENTS AND PROCESS

   a. Each OSD and DoD Component shall provide oversight and management of all marks owned or controlled by the Component. This includes but is not limited to establishing policies for the creation of marks for official use; monitoring marks for, and protecting them against, unauthorized use; and, as appropriate, licensing marks for authorized use

by non-DoD entities, and registering marks with the USPTO.

b. Members of the DoD Trademark Licensing Working Group shall consist of the program manager of each DoD and OSD Component trademark licensing program. The attorneys who are the principal legal advisors to program managers on trademark matters may also participate as full members of the Working Group. The Coast Guard, when it is a Service in the Department of Homeland Security, may participate similarly in the proceedings and meetings of the Working Group. The Manager, DoD Branding and Trademark Licensing Program, may, from time to time, solicit the views and assistance of technical advisors as necessary to meet the requirements and goals of Reference (a) and this instruction. The purpose of the Working Group is to encourage implementation of common procedures and policies across all DoD organizations operating trademark licensing programs and to facilitate internal communication on issues that apply to the joint Do0D trademark licensing community. The DoD Trademark Licensing Working Group shall meet monthly.

c. OSD and DoD Components operating a trademark licensing program shall, to the extent it is practical and appropriate, strive to develop common requirements that must be met by licensees to secure licenses for DoD marks, royalty rates to be paid on the sale of licensed products or services, and product quality standards that are appropriate for the type of product or service being licensed.

d. In accordance with subpart 2635.702 of Title 5, Code of Federal Regulations (Reference (h)), DoD marks may not be licensed for use in a manner that creates a perception of DoD endorsement of any non-federal entity or its products and services. DoD marks may not be licensed for any purpose intended to promote ideological movements, sociopolitical change, religious beliefs (including non-belief), specific interpretations of morality, or legislative/statutory change. Marks may not be fraudulently or wrongfully affixed pursuant to sections 506 and 1017 of Title 18, U.S.C. (Reference (i)).

e. DoD marks may not be licensed for use in a manner that would reflect negatively on the DoD; degrade the name, reputation, or public goodwill of the DoD Components; or be contrary to community relations objectives established in DoDD 5410.18 (Reference (j)).

f. The program manager of each OSD and DoD Component trademark licensing program shall ensure the program under his or her control is operated in compliance with the following financial management and reporting requirements:

    1. A complete and accurate accounting of all trademark licensing fees received by the Component, including the disposition of such fees, shall be maintained in accordance with Volume 12, chapter 31 of Reference (e) and Reference (f).

    2. Ensure all monies received from trademark licenses are safeguarded, recorded, and promptly transferred to the Component's DFAS Budget Clearing (Suspense) Account for Trademark Licensing in accordance with Volume 12, chapter 31 of Reference (e) and Reference (f).

3. Upon request, all accounting records required under Volume 12, chapter 31 of Reference (e) and Reference (f) shall be reported to the Manager, DoD Branding and Trademark Licensing Program.

g. Trademark licensing fees shall only be used for:

1. Payment of the costs of securing trademark registrations and the costs of operating the licensing program as those costs are defined in the Glossary of this instruction.

2. OSD or DoD Component morale, welfare, and recreation (MWR) activities to the extent (if any) that the total amount of the licensing fees available in a fiscal year exceeds the total amount needed for that fiscal year's costs and costs for the subsequent 2 fiscal years as described in paragraph 2g(1) of this enclosure. Reasonable controls over trademark licensing program expenses shall be implemented.

3. Licensing fees not used for costs described in paragraph 2g(1) of this enclosure shall be transferred to an OSD or DoD Component MWR activity in accordance with Volume 12, chapter 31 of Reference (e) and Reference (f) before the end of the fiscal year that is 2 years after the fiscal year in which the fees were collected.

h. Requests and approvals for use of trademark licensing fees.

1. Requests for use of funds deposited in a Component's Budget Clearing (Suspense) Account for Trademark Licensing shall be initiated by the program manager or by such other individuals or offices designated the authority to do so by the Component concerned in accordance with Reference (f).

2. The individual or office designated in accordance with Volume 12, chapter 31 of Reference (e) to review and approve requests for the use of funds deposited in the Component's Budget Clearing (Suspense) Account for Trademark Licensing shall ensure that funds are only used for authorized purposes in accordance with paragraph 2g and its subparagraphs of this enclosure.

3. Approved requests shall be submitted to DFAS according the procedures prescribed in Reference (f).

i. The provisions of paragraphs 2f through 2h of this enclosure requiring use of Component Budget Clearing (Suspense) Accounts for deposit of trademark licensing program receipts do not apply to trademark licensing program activities of Nonappropriated Fund Instrumentalities (NAFI) undertaken under authority of section 2260 of Reference (b). Components may authorize NAFIs to retain trademark licensing fee receipts in organizational NAFI fund accounts when generated from the licensing of marks that the NAFI creates and/or are controls. NAFI's shall use such fee receipts for licensing and

MWR activity costs. Accounting for such fees shall be in accordance with Volume 13, chapter 1 of Reference (e) and DoDI 1015.15 (Reference (l))

j. OSD and DoD Components may authorize their licensees to identify themselves as "Official Licensees" of the DoD Component concerned. Licensees who identify themselves as such in printed form, including on product packaging, promotional materials and web sites, shall display prominently a non-endorsement disclaimer such as, "Endorsement by the United States Department of Defense or [the DoD Component Concerned] is not intended nor implied." Licensees may not state they are a partner, or imply any further association, with DoD or the DoD Component concerned as a result of the license agreement.

k. OSD and DoD Components may establish web pages that list their authorized licensees. Names of authorized licensees with hyperlinks to the licensees' web sites may be displayed provided the web page on which the names are displayed is clearly identified as being a listing of authorized licensees, and is done in such a manner that no licensee is given prominence over another. In no case may a Component endorse or in any way indicate that the products or services of one licensee are superior to the products or services of any other entity. Components establishing such a web page must prominently display an external links disclaimer compliant with DoDI 8170.01 (Reference (1)), such as shown at Figure 1.

Figure 1. Webpage Disclaimer

The appearance of external hyperlinks does not constitute endorsement by the United States Department of Defense of linked web sites or the information, products, or services contained therein. For other than authorized activities such as military exchanges and morale, welfare and recreation sites, the United States Department of Defense does not exercise any editorial control over the information you may find at these locations. All links are provided consistent with the mission of this web site.

l. All authorizations for the use of a DoD mark shall be made in the form of a license, regardless of whether fees are received or not. All such licenses shall:

    1. Identify in detail the marks the licensee is authorized to use.

    2. Provide quality control guidelines for the licensee's items bearing the marks.

    3. Describe the manner in which the marks may be reproduced and used.

    4. Specify the term or duration of such authorization.

    5. Be executed in coordination with the Component's servicing legal counsel.

m. Licenses may include terms that require licensees (including license applicants) to submit

product samples to an OSD or DoD Component trademark licensing program to facilitate quality control monitoring of items bearing marks owned or controlled by the Component. When requiring such product samples, Components shall inform licensees in writing that samples will not be returned unless their return is requested prior to delivery; that the licensee bears all costs for delivery and return of samples; and that the U.S. Government disclaims all responsibility for the damage or loss of samples requested for return. Disposition of unreturned samples no longer needed by the Component for official use shall be in accordance with DoD Manual 4160.21 (Reference (m)).

n. OSD and DoD Components shall not receive in-kind goods or services as consideration for issuing a license to use marks owned or controlled by the Component. Requests for exceptions to this policy may be approved by the Manager, DoD Branding and Trademark Licensing Program, in coordination with the Component's servicing legal counsel when doing so is in the best interest of the DoD.

o. OSD and DoD Components shall not issue licenses that grant to a licensee the exclusive use of marks owned or controlled by the Component. Exceptions to this policy may be approved by the Manager, DoD Branding and Trademark Licensing Program, in coordination with the Component's servicing legal counsel when doing so is in the best interest of the DoD.

p. OSD and DoD Components shall not issue licenses in a manner that constitutes preferential treatment or selective benefit of the licensee.

q. Notifications, including cease and desist letters sent by an OSD or DoD Component regarding the unauthorized use of a DoD mark, shall be coordinated with the Component's servicing legal counsel. OSD Components shall report such notifications to the Manager, DoD Branding and Trademark Licensing Program.

3. GOVERNANCE OF OSD COMPONENT MARKS

a. The seal of the Department of Defense is reserved for official use only, pursuant to section 112 of Reference (b) and DoDD 5110.04 (Reference (n)).

b. Within 60 days of the publication of this instruction, OSD Components shall create a roster of official marks currently owned or controlled by the Component using the template in the appendix to this enclosure. Rosters shall be forwarded to the Manager, DoD Branding and Trademark Licensing Program, and will be compiled into a master roster of OSD Component marks. OSD Components shall maintain the currency of rosters and shall forward updated rosters to the Manager, DoD Branding and Trademark Licensing Program, as marks are established or disestablished for use within the Component.

c. The OSD Component Trademark Council shall be chaired by the Manager, DoD Branding and Trademark Licensing Program, and shall in addition consist of a representative from:

1. DoD OGC, who shall be the functional expert on all legal matters related to the operation of OSD Component trademark licensing programs; protection of OSD marks from unauthorized use; and registration of OSD marks with the USPTO.

2. Office of the Under Secretary of Defense (Comptroller), who shall be the functional expert on all finance matters related to the operation of OSD Component trademark licensing programs.

3. Office of the Administrative Assistant to the Secretary of the Army, The Institute of Heraldry, who shall advise the Council Chair and OSD Components on matters of heraldry and the heraldic implications of existing and proposed design marks used within OSD.

4. WHS OGC, who shall advise the Council Chair and OSD Components on all matters regarding use of the seal of the DoD.

5. WHS Graphics and Presentations Division, who shall advise the Council Chair and OSD Components on matters related to the creation of design marks for use within OSD.

d. The purpose of the OSD Component Trademark Council is to provide subject matter expertise and program guidance to the OSD Components; upon request, assist the OSD Components with USPTO registrations; steer the overall governance of marks owned or controlled by OSD Components; and exercise primary governance of OSD marks not owned or controlled by a single OSD Component. The Council shall meet quarterly, at minimum.

e. In accordance with Reference (a) and this instruction, OSD Components are encouraged to register marks under their control with the USPTO that they deem to have a commercial value or when they determine the registration of marks is appropriate to address unauthorized use or infringement. The OSD Component Trademark Council shall assist OSD Components with USPTO registrations upon request. The process for requesting such assistance requires that:

1. The program manager, individual, or office authorized by the Component head to manage the mark shall submit a request for trademark registration review to the Manager, DoD Branding and Trademark Licensing Program. The request shall include a copy and/or textual description of the mark; the proposed classification of goods and services in which the mark will be registered; and justification supporting trademark registration.

2. The OSD Component Trademark Council will conduct the trademark registration review no later than at its next scheduled meeting. Following review, the OSD Component Trademark Council will provide recommendations and guidance to the requesting Component regarding issues such as the design of the mark;

appropriate goods and services classifications for trademark registration; procedures for protecting registered marks from unauthorized use; and as appropriate, procedures for licensing the mark and managing any licensing fees received.

3. The DoD OGC will coordinate with the requesting OSD Component, as appropriate, to identify an attorney of record to support the preparation, filing, and prosecution of a trademark registration. The requesting Component shall generally be responsible for funding registration fees and other costs associated with the initial registration and subsequent renewals of the registration.

4. (Added) (AF) MANAGER/DIRECTOR, AIR & SPACE FORCES BRANDING AND TRADEMARK LICENSING PROGRAM

a. **(Added) (AF) Oversees the Air & Space Forces Branding and Trademark Licensing Program, a branch in the Air & Space Forces Intellectual Property Management Office, including all operational, financial, and personnel activities within the program. (T-1)**

b. (Added) (AF) Develops and cultivates internal and external relationships to promote the Air & Space Forces Brands, including the use of trademark licenses and educational programs. (T-1)

c. (Added) (AF) Reviews and coordinates public and private uses of marks or indicia which comprise the Air & Space Forces Brands by using appropriate contract mechanisms and educational initiatives, thus enhancing the Brands, reflecting the Air & Space Forces' core values, and distinguishing the Air & Space Forces from the other brands. (T-1)

d. (Added) (AF) Collects, maintains and reports all financial data in response to established policies and procedures, to include quarterly sales volume reports, royalty collections, and any other data required to manage the programs or to fulfill any financial management and reporting obligations. (T-1)

e. (Added) (AF) Serves as the subject matter expert on all issues associated with the Air & Space Forces Brands, to include the development, socialization, registration, and licensing of new and existing logos and style guides. (T-1)

f. (Added) (AF) Serves as the sole source for licensing out marks except for those specifically identified as being exclusively NAFI and containing only NAFI marks. (T-1) May assume the licensing activity for NAFI marks at the request of the NAFI.

g. (Added) (AF) Reviews and approves all logos for programs, limited time campaigns, commemorative events and the like, that originate or are managed at the Major Command (MAJCOM) /Field Command level and higher, ensuring compliance with established use guidelines. (T-1)

h. **(Added) (AF) Serves as the subject matter expert, as needed, for trademark matters for the Air & Space Forces communities at large, including base-level activities and those activities below MAJCOM/Field Command level as needed. (T-1)**

APPENDIX TO ENCLOSURE 2

TEMPLATE FOR OSD COMPONENT MARK ROSTER

OSD Components shall use the template depicted in Figure 2 when submitting a roster of marks. An electronic version of the template is available upon request from the Manager, DoD Branding and Trademark Licensing Program, Office of the Assistant to the Secretary of Defense for Public Affairs (OATSD (PA)).

Figure 2. Template for OSD Component Mark Roster

OSD COMPONENT MARK ROSTER

Component: Defense Advanced Research Projects Agency
Governance Point of Contact
Name: Mr. John Theory
Office: DARPA Public Affairs
Telephone: (703) 555-1212
Email: john.theory@darpa.mil

Mark	*	Description (optional)	TM Status/ Number	TM Atty. of Record
	Y	DARPA's primary logo. Consists of a blue globe-like shape outlined in gray with six curved horizontal lines; a half-circle at the top and bottom of the globe-like shape; a straight line in the center of the globe-like shape, with a curved vertical line above and below the straight line; all gray in color. The letters "DARPA" appear in the front of the lines within the globe-like shape. The top of the letters are light silver turning to a darker gray toward the bottom of the letters.	Active 352255	Ms. Jane Law DARPA/GC jane.law@darpa.mil
	N	A stylized image of an atom consisting of three light green ovals and three dark green circles representing the orbits of three electrons.	Not Registered	N/A
DARPA TECH	N	Word mark only, no design.	Pending	Ms. Jane Law DARPA/GC jane.law@darpa.mil

* If mark is used in a trademark licensing program, or if Component approves non-DoD use, indicate "Y"
If mark is reserved exclusively for official use by DoD, and external uses are not approved, indicate "N"

Submit rosters to OATSD (PA) at: PAreview@osd.mil

(ADDED) (AF) ENCLOSURE 3

(Added) (AF) AIR & SPACE FORCES BRANDS

1. **(Added) (AF) Public/Retail Elements. The following primary elements of the Air & Space Forces Brands are designated as available for public/retail use and may be considered for licensing to the extent licensed products are, at a minimum, not sexual in nature, cannot be associated with substance abuse, and do not promote any message or image that detracts or diminishes the Brands:**

   a. **(Added) (AF) Air Force Symbol. The Air Force Symbol is the official logo of the Air Force.**

   b. **(Added) (AF) Space Force Delta. The Space Force Delta is the official logo of the Space Force.**

   c. **(Added) (AF) Air Force Emblem. The emblem is comprised of the Air Force Coat of Arms encircled by an outer border that includes the words "United States Air Force."**

   d. **(Added) (AF) Air Force One. Air Force One is the call sign of any U.S. Air Force aircraft carrying the President of the United States. The Brand includes the call sign, as well as the distinctive trade dress of the aircraft commonly referred to as "Air Force One."**

   e. **(Added) (AF) Air Force Thunderbirds. The Air Force's premier aerial demonstration team is generally referred to as the Air Force Thunderbirds. The Brand includes, among other things, the Thunderbirds logo and the team's distinctive trade dress.**

   f. **(Added) (AF) Any other names, logos, symbols, insignia, or other devices, including legacy symbols, enlisted chevrons, occupational badges, and campaign and service medal ribbons (not the medals) used by the Air or Space Forces and authorized for commercial use.**

2. **(Added) (AF) Non-Public/Non-Retail Elements. The following primary elements of the Air & Space Forces Brands are limited to internal and/or official use. They are not authorized for public/retail use:**

   a. **(Added) (AF) Air Force Seal. The official seal of the Air Force is for internal, official use. AFMAN 33-326, Preparing Official Communications, Attachment 2, defines the authorized uses of the Air Force Seal.**

   b. **(Added) (AF) Space Force Seal. The official seal of the Space Force is for internal, official use. (T-1)**

c. (Added) (AF) Army Air Corps Wings. The Army Air Corps Wings, commonly referred to as the Hap Arnold Wings, may be authorized for external use on a limited basis. (T-1) It is authorized for internal use when appropriate to identify historical achievements, such as: Air Force birthday celebrations, ceremonies for those who served at least 75% of their military commitment before 2004, museum signage, and historical displays. (T-1)

d. (Added) (AF) Official flag. The official flags of the Air Force and Space Force are for internal, official use. (T-1) Uses by entities such as civic groups or sports venues for permanent or semi-permanent display may be evaluated on a case-by-case basis by the Manager/Director of the Intellectual Property Management Office. (T-1)

e. (Added) (AF) Any other names, logos, symbols, insignia, or other devices, including legacy symbols, ribbons (personal awards) and related devices, and uniform patterns, not previously authorized for commercial use. (T-1)

3. (Added) (AF) Other Elements. The Air & Space Forces Branding and Trademark Licensing Program Manager/Director evaluates any other marks not listed here for authorized use.

(ADDED) (AF) ENCLOSURE 4

DISPLAY GUIDE

1. **(Added) (AF) Air Force Symbol. Each component of the Air Force Symbol ("the Symbol") represents different aspects of the Air Force that creates the Air Force's overall identity. Therefore, the Symbol should be displayed in its entirety, in a position of prominence, and in a manner that brings positive attention to the Air Force.**

   a. (Added) (AF) The Symbol should only be included in a product when it adds to the overall design and supports the mission of the Air Force.

   b. (Added) (AF) The Symbol should be incorporated, when practical, into logos for Air Force-level programs and services to help end users distinguish the source of the program or service.

   c. (Added) (AF) In most cases, the Symbol should be used in lieu of the Army Air Corps symbol (Hap Arnold Wings). Acceptable uses of the Army Air Corps Wings include: Air Force birthday celebrations, ceremonies for those who served at least 75% of their military commitment before 2004, museum signage, and historical displays.

2. **(Added) (AF) Proper Display of Air Force Symbol.**

   a. (Added) (AF) Approved graphics files of the logo, in the authorized Pantone colors and proportions, can be found on the Air Force Portal.

   b. (Added) (AF) Changing the size of the logo (with or without the logotype), as necessary, is encouraged when appropriate. However, the proportions of the logo and the signature (the Symbol with logotype) are fixed and must not be altered. (T-1) Proportions can be found at www.trademark.af.mil.

   c. (Added) (AF) Stretching/distorting the logo or signature is prohibited. (T-1)

   d. (Added) (AF) Adding or subtracting anything from the logo, including shadows and special effects, or creating hybrids with other graphics, is prohibited. (T-1)

   e. (Added) (AF) The only graphic that shall be cradled inside the wings of the logo are unit patches of organizations at MAJCOM-level or higher that have been approved and registered with the Air Force Historical Research Agency. (T-1) Only one emblem shall be cradled inside the wings. (T-1) When cradling a qualified patch between the wings, the cradled emblem is half the height of the logo. (T-1) The patch must be centered evenly between the wings with half of the patch extending above the wing's tips. (T-1)

f. (Added) (AF) Drawing or portraying objects coming through, protruding from, hanging off of, or resting upon the logo is prohibited. (T-1)

g. (Added) (AF) Using an unapproved color, texture, or format is prohibited. (T-1) Approved colors, textures and formats are listed at www.trademark.af.mil.

h. (Added) (AF) The logo can appear on a patterned background, such as a patterned fabric or website background. The background shall be subdued and conservative in nature, and there is a definitive separation between the background and the logo. (T-1)

i. (Added) (AF) There must be an exclusion zone, or negative space, around the logo that is equivalent to at least 30% the width of the logo (15% per each side). (T-1) The exclusion zone takes the shape of a square. (T-1) No other graphic elements or unapproved wording may encroach in this space. (T-1) Exception: App icons, social icons, and products with limited space (e.g., coins and other small memorabilia) are exceptions to exclusion zone guidelines and may be sized optically to best fit each medium.

j. (Added) (AF) The SAF/PA Director may authorize alternate wording to appear directly under the logo. The approved list can be found at www.trademark.af.mil. Alternate wording not on the website must incorporate a visual separation from the logo, such as a line, color, or circle. (T-1) Words or phrases should not distract from the logo or be placed above the logo.

k. (Added) (AF) The logo can be made of building material such as glass, wood, brick, and metal and can appear in the color of the natural material being used.

l. (Added) (AF) Multi-dimensional designs and animations of the logo shall be coordinated with the Air & Space Forces Branding and Trademark Licensing Program through the Air & Space Forces Intellectual Property Management Office. (T-1)

m. (Added) (AF) Additional display standards are available by contacting the Air & Space Forces Branding and Trademark Licensing Program through the Air & Space Forces Intellectual Property Management Office. Contact information can be found at www.trademark.af.mil.

(Added) (AF) Figure 3. Air Force Symbol without logotype



(Added) (AF) Figure 4. Air Force Symbol with logotype (signature)



3. (Added) (AF) Display of "U.S. Air Force" logotype

a. (Added) (AF) Use of the "U.S. Air Force" logotype is not mandatory in conjunction with the Air Force Symbol but should be considered if its inclusion aids the public in understanding the source of the product or service. When used, the preferred position of the logotype is beneath the Symbol. It is also acceptable to place the logotype on the right or left side of the Symbol. Placing the logotype on the top of the Symbol is not allowed, even if the logotype is outside the exclusion zone. (T-1)

b. (Added) (AF) The correct font for the logotype is "Berthold Akzidenz Grotesk bold extended." If "Berthold Akzidenz Grotesk bold extended" is not available, use "Arial Black bold uppercase." This font is required in all cases where the logotype appears with the Symbol. (T-1) When practical, this font should be used in cases where the logotype stands alone.

c. (Added) (AF) The use of the logotype, or any variation of the logotype, can be used in a web address by a third party if it comes after the domain name.

4. (Added) (AF) Space Force Delta. The official logo is comprised of three primary elements: the spires that form a delta, the Polaris, and the logotype – either United States Space Force or USSF. The logo represents different aspects of the Space Force that creates the Space Force's overall identity. Therefore, the Space Force Delta ("the Delta") must be displayed in its entirety, in a position of prominence, and in a manner that brings positive attention to the Space Force. (T-1)

a. (Added) (AF) The Delta should only be included in a product when it adds to the overall design and supports the mission of the Space Force.

b. (Added) (AF) The Delta should be incorporated, when practical, into logos for Space Force-level programs and services to help end users distinguish the source of the program or service.

5. (Added) (AF) Proper Display of Space Force Delta

a. (Added) (AF) Approved graphics files of the logo, in the authorized Pantone colors and proportions, can be found on the Air Force Portal.

b. (Added) (AF) Changing the size of the logo, as necessary, is encouraged when appropriate.

c. (Added) (AF) Stretching/distorting the logo is prohibited. (T-1)

d. (Added) (AF) Adding or subtracting anything from the logo, including shadows and special effects, or creating hybrids with other graphics, is prohibited. (T-1)

e. (Added) (AF) Drawing or portraying objects coming through, protruding from, hanging off of, or resting upon the logo is prohibited. (T-1)

f. (Added) (AF) Using an unapproved color, texture, or format is prohibited. (T-1) Approved colors, textures, and formats are listed at www.trademark.af.mil.

g. (Added) (AF) The logo can appear on a patterned background, such as a patterned fabric or website background. The background shall be subdued and conservative in nature, and there is a definitive separation between the background and the logo. (T-1)

h. (Added) (AF) There must be an exclusion zone, or negative space, around the logo on each side that is equivalent to at least half the width of the Delta. (T-1) The exclusion zone takes the shape of a square. (T-1) No other graphic elements or unapproved wording may encroach in this space. (T-1) Exception: App icons, social icons, and products with limited space (e.g., coins and other small memorabilia) are exceptions to exclusion zone guidelines and may be sized optically to best fit each medium.

i. (Added) (AF) The SAF/PA Director may authorize alternate wording to appear directly under the logo. The approved list can be found at www.trademark.af.mil. Alternate wording not on the website must incorporate a visual separation from the logo, such as a line, color, or circle, in accordance with the clear space requirement above. (T-1) Words or phrases should not distract from the logo or be placed above the logo.

j. (Added) (AF) The logo can be made of building material such as glass, wood, brick, and metal and can appear in the color of the natural material being used.

k. (Added) (AF) Multi-dimensional designs and animations of the logo shall be coordinated with the Air & Space Forces Branding and Trademark Licensing Program through the Air & Space Forces Intellectual Property Management Office. (T-1)

l. (Added) (AF) When displayed in conjunction with the Air Force Symbol, the Space Force Delta shall appear to the right of the Symbol and respect the exclusion zone of each logo. (T-1)

m. (Added) (AF) Additional display standards are available by contacting the Air & Space Forces Branding and Trademark Licensing Program through the Air & Space

Forces Intellectual Property Management Office. Contact information can be found at www.trademark.af.mil.

(Added) (AF) Figure 5. Space Force Delta with primary logotype



(Added) (AF) Figure 6. Space Force Delta with secondary logotype



6. (Added) (AF) Display of Space Force logotype

a. (Added) (AF) Locking up "United States Air Force" or "USSF" to the Delta is mandatory. (T-1) The logotype is below or to the right of the Delta in its established font and proportions. (T-1) Placing the logotype on the top of or to the left of the Delta is not allowed, even when the logotype is outside the exclusion space. (T-1)

b. (Added) (AF) The correct font for the logotype is "Sharp Sans." If "Sharp Sans" is not available, use "Trebuchet." When practical, this font should be used in cases where the logotype stands alone.

c. (Added) (AF) The use of the logotype, or any variation of the logotype, can be used in a web address by a third party if it comes after the domain name.

7. (Added) (AF) Proper Display of Air Force Emblem and other logos

a. (Added) (AF) Stretching or distorting the Air Force Emblem or other logos is prohibited. (T-1)

b. (Added) (AF) Adding or subtracting anything from the Air Force Emblem or other logos, including shadows or special effects, is prohibited. (T-1)

c. (Added) (AF) The Air Force Emblem and other logos may be in full color, black and white, color monochrome, pictorial, or sculptured relief form.

d. (Added) (AF) The Air Force Emblem and other logos can be made of building material such as glass, wood, brick, and metal and can appear in the color of the natural material being used.

(Added) (AF) Figure 7. Air Force Emblem



GLOSSARY

PART I. ABBREVIATIONS AND ACRONYMS

(Added) (AF)	
AFPAA	**Air Force Public Affairs Agency**
(Added) (AF)	
AFSVA	**Air Force Services Activity**
ATSD (PA)	Assistant to the Secretary of Defense for Public Affairs
(Added) (AF)	
DAF	**Department of the Air Force**
(Added) (AF)	
4	**Department of the Air Force Instruction**
DFAS	Defense Accounting and Finance Service
(Added) (AF)	
DoD	**Department of Defense**
DoDD	DoD directive
DoDI	DoD instruction
GC DoD	General Counsel of the Department of Defense
(Added) (AF)	
HAF MD	**Headquarters Air Force Mission Directive**
(Added) (AF)	
MAJCOM	**Major Command**
MWR	morale, welfare, and recreation
NAFI	Nonappropriated Fund Instrumentality
OATSD (PA)	Office of the Assistant to the Secretary of Defense for Public Affairs
OGC	Office of General Counsel
(Added) (AF)	

OPR	**Office of Primary Responsibility**
(Added) (AF) **USAFA**	**U.S. Air Force Academy**
U.S.C	United States Code
USD(C)/CFO	Under Secretary of Defense (Comptroller)/Chief Financial Officer, Department of Defense
USPTO	United States Patent and Trademark Office
(Added) (AF) **USSF**	**United States Space Force**
WHS	Washington Headquarters Service

PART II. DEFINITIONS

Unless otherwise noted, these terms and their definitions are for the purposes of this Instruction.

Cost of securing trademark registration. This may, at the discretion of the DoD Component head concerned, include:

Fees paid to secure and maintain the registration of trademarks, service marks, certification marks, and collective marks with USPTO, the trademark office of any State or U.S. territory or foreign governmental entity, and the U.S. Customs and Border Protection Bureau.

Salaries and wages of civilian personnel providing the services described in the previous paragraph. This includes salaries; fringe benefits; leave and holiday factors, when applicable; DoD-funded civilian retirement costs; health and life insurance; and civilian retirement costs not funded by DoD appropriations.

Costs of operating the licensing program. This may, at the discretion of the DoD Component head concerned, include:

Salaries and wages of civilian personnel working on the DoD Component's trademark licensing program to include salaries; fringe benefits; leave and holiday factors, when applicable; DoD-funded civilian retirement costs; health and life insurance; and other civilian retirement costs not funded by DoD appropriations.

Contractor support and administration costs. Tradeshows and other promotion and

marketing expenses are included in this definition to the extent their primary function is to enhance brand development and commercial value through increased public awareness of the marks. The cost of ensuring licensees adhere to product quality standards; the cost of enforcing exclusive rights against unauthorized use of marks by third parties; and similar costs; are other examples, not intended to be all inclusive, of contractor support and administration costs that may be included.

Travel and miscellaneous administrative support costs. Training costs are included in this definition to the extent that such training is required to ensure personnel working in a DoD Component's trademark licensing program are provided the necessary education and skills to efficiently operate the program in accordance with the goals and guidelines set forth in Reference
(a) and this instruction.

License. A written document that authorizes or gives official permission to a person, group, or organization to use a mark owned by a DoD Component. Such documents shall, at a minimum, provide quality control guidelines, specify the marks the licensee is authorized to use, the manner in which the marks may be reproduced, and the term or duration of such authorization. When used as a verb it means the act of issuing such a written document to the person or organization who is receiving authorization to use a mark owned by a DoD Component.

(Added) (AF) exclusion zone. The space around a logo/graphic in which another graphic or unapproved wording may not appear or encroach.

Licensee. Defined in Reference (a).

Mark. Any trademark, service mark, certification mark, or collective mark as defined by section 1127 of Reference (c) that is owned or controlled by a DoD Component. This includes but is not limited to words, names, seals, emblems, symbols, slogans, designs, logos, heraldic images, military operation designations, medals, insignia, the names or likenesses of military weapon systems, and other visual or aural displays in use or intended to be used by a DoD Component.
This also encompasses registered trademarks and common law trademarks.

MWR activity. An authorized activity of an MWR program as defined in DoDI 1015.10 (Reference (o)).

NAFI. Defined in Reference (i).

OSD Components. The DoD Working Capital Fund Activities, DoD Field Activities, DoD Agencies, and all other DoD Components, excluding the Military Departments.

OSD Component mark. A mark that is owned or controlled by an OSD Component. It also includes marks such as names of military operations, words, names, slogans, designs, symbols, medals, insignia, and the names or likenesses of weapon systems that

are used by multiple DoD Components.

Program Manager. The person designated as the director or head of a trademark licensing program operated by an OSD or DoD Component.

(Added) (AF) Public/retail elements. Those marks in the brand portfolio that are generally approved for use beyond the DoD and whose use generally requires a license agreement. This includes entities such as manufacturers, civic organizations, educational institutions, and professional sports arenas.

Roster. A listing of all marks owned or controlled by an OSD Component.

Trademark licensing program. Defined in Reference (a).